

MASTER TERMS OF SERVICE & STATUTORY OHSA LIABILITY WAIVER

PLATFORM: THE VAULT | SIMPLE SOLUTIONS (PTY) LTD

■ MANDATORY SECTION 49 CPA STATUTORY NOTICE

IMPORTANT STATUTORY NOTICE UNDER SECTION 49 OF THE CONSUMER PROTECTION ACT 68 OF 2008:

CLAUSES 4, 5, 6, 7, AND 9 OF THIS AGREEMENT CONTAIN SPECIFIC LIMITATIONS OF LIABILITY, DELICTUAL INDEMNITIES, STATUTORY ASSUMPTIONS OF RISK UNDER THE OCCUPATIONAL HEALTH AND SAFETY ACT 85 OF 1993, AND WAIVERS OF CLAIMS AGAINST SIMPLE SOLUTIONS (PTY) LTD. BY CREATING AN ACCOUNT, SUBSCRIBING, LOGGING AN OPERATIONAL REGISTER, OR ACCESSING 'THE VAULT', THE CLIENT EXPRESSLY ACKNOWLEDGES AND ACCEPTS THESE PROVISIONS.

1. DEFINITIONS AND INTERPRETATION

1.1 'Client' means the primary agricultural producer, commercial farm, packing facility, agribusiness entity, or employer subscribing to, accessing, or utilizing The Vault.

1.2 'Corporate Partner' means any commercial packhouse, agricultural processor (e.g., Amber Macs, Mayo Macs), co-operative (e.g., The Mac Coop), export syndicate, or marketing entity that subsidizes, sponsors, or links a Client's subscription via a designated Grower Code.

1.3 'De-Identified Data' means operational metrics, module completion counts, audit review intervals, and aggregated benchmarks that have undergone irreversible de-identification and micro-cohort suppression (k-anonymity ≥ 5) in accordance with POPIA.

1.4 'ECTA' means the Electronic Communications and Transactions Act 25 of 2002.

1.5 'OHSA' means the Occupational Health and Safety Act 85 of 1993, together with all applicable subordinate regulations, including the Driven Machinery Regulations (DMR 2015), General Safety Regulations (GSR), Regulations for Hazardous Chemical Agents (RHCA), and Environmental Regulations for Workplaces (ERW).

1.6 'POPIA' means the Protection of Personal Information Act 4 of 2013.

1.7 'Services' means access to The Vault SaaS platform, Standard Operating Procedure (SOP) baseline templates, multi-lingual AI-assisted video induction modules, risk assessment generators, digital attendance registers, and compliance logs.

2. ACCOUNT TIERS, ADMINISTRATIVE SEATS, AND END-USER WORKERS

2.1 Two-Tier Licensing Model: The Service operates on a two-tier licensing architecture:

- **Administrative Seats:** Designated user accounts allocated to farm managers, safety officers, supervisors, or Section 16(2) assignees who configure rosters, schedule modules, and execute registers. Standard enterprise subscriptions include five (5) administrative seats unless modified by written addendum.
- **End-User Worker Subjects:** Unseated farm employees, seasonal harvesters, machine operators, and contractors who view video modules, complete verbal comprehension evaluations, and provide digital attendance signatures under supervisor direction.

2.2 Proprietary Security Backend: The Client acknowledges that access control, authentication, and session telemetry are managed exclusively via Simple Solutions' custom-built, proprietary backend infrastructure. Administrative credentials must remain confidential and may not be shared, pooled, or transferred outside authorized personnel.

3. SUBSCRIPTION, CORPORATE SUBSIDIES, AND NON-REFUNDABLE DIGITAL DELIVERY

3.1 Billing & Fees: Subscriptions, specialized crop packs, and module expansions are billed in advance via Paystack or approved B2B commercial debit.

3.2 Corporate Partner Subsidies: Where a Client applies an authorized Grower Code linked to a Corporate Partner (Packhouse/Processor), the Client authorizes Simple Solutions to provide high-level supply-chain compliance telemetry to the Corporate Partner in accordance with Section 9.

3.3 ECTA Digital Delivery & No-Refund Policy: In terms of Section 42(2)(f) and Section 44 of the ECTA, statutory cooling-off withdrawal rights do not apply to immediately delivered digital services, software templates, or streaming media. All subscription fees paid are non-refundable, except where a continuous, verified server-side system outage originating exclusively within Simple Solutions' host environment prevents platform access for more than 48 continuous hours.

4. STATUTORY HEALTH & SAFETY ALLOCATION OF RISK (OHSA DEFENSE)

4.1 Non-Delegable Statutory Duties (OHSA Section 8 & 9): The Client expressly acknowledges that under Section 8 and Section 9 of the OHSA, the legal obligation to provide a safe working environment, conduct physical workplace hazard assessments, enforce Personal Protective Equipment (PPE) utilization, and provide competent, practical on-the-job instruction and supervision remains solely, exclusively, and non-delegably with the Client (as Employer).

4.2 Baseline / Unaccredited Character of Content: The Client acknowledges, understands, and agrees that:

- **Supplementary Guidance Only:** The SOP templates, risk assessments, and multi-lingual induction media provided within The Vault do NOT constitute certified engineering advice, accredited occupational hygiene surveys, or formal statutory qualifications under the South African National Qualifications Framework (NQF), QCTO, or AgriSETA.
- **No Exemption from Practical Competency:** The Vault does NOT replace mandatory practical, physical competency evaluations and supervised hands-on machine operation required under the Driven Machinery Regulations and General Safety Regulations (including tractors, brushcutters, chainsaws, dehusking lines, electrical DB installations, and angle grinders).

4.3 Client Adoption and Site Verification: When an assessor or supervisor executes, signs, or downloads any Baseline Risk Assessment (BRA), Operational Risk Assessment (ORA), or Attendance Register generated via The Vault, the Client warrants that it has evaluated the material against actual physical estate conditions and adopted such document as its own internal statutory safety standard.

5. DELICTUAL INDEMNIFICATION AND COMPREHENSIVE WAIVER

5.1 Complete Indemnity: To the maximum extent permitted under South African law, the Client hereby UNEQUIVOCALLY AGREES TO DEFEND, INDEMNIFY, AND HOLD HARMLESS Simple Solutions (Pty) Ltd, its directors, developers, technical architects, employees, and affiliates FROM AND AGAINST ANY AND ALL:

- **Personal Injury & Fatalities:** Civil, delictual, common-law, or statutory claims for damages, personal injuries, occupational diseases, disabilities, or fatalities (including any incident reportable under Section 24 of the OHSA) sustained by any employee, worker, contractor, or visitor.
- **Statutory Fines & Sanctions:** Administrative fines, compliance directives, stop-work orders, or criminal penalties instituted by the Department of Employment and Labour (DoEL), the Compensation Commissioner (COIDA), or municipal authorities.
- **Audit Decertification:** Audit non-conformances, financial losses, suspension of export accreditations, or sanctions issued by agricultural audit bodies (including SIZA Social, SIZA Environmental, and GlobalG.A.P.).
- **Content Reliance Claims:** Claims alleging that content, templates, questions, or media within The Vault were defective, inadequate, or omitted specific on-site agricultural hazards.

6. THIRD-PARTY MACHINERY, BRAND PLACEMENT, AND SPONSOR DISCLAIMERS

6.1 Visual Placement: Visual depictions of third-party commercial machinery, protective gear, tools, or agricultural chemicals within The Vault's induction videos and SOP documents are integrated for illustrative operational context only.

6.2 Disclaimer of Warranty & Endorsement: Visual placement DOES NOT constitute an endorsement, statutory warranty, or safety fitness guarantee by Simple Solutions or by the original equipment manufacturer (OEM). The Client remains strictly obligated to consult OEM operating manuals and ensure machinery guarding complies with Driven Machinery Regulation 2.

7. INTELLECTUAL PROPERTY RIGHTS & PROPRIETARY RESTRICTIONS

7.1 Simple Solutions IP: Simple Solutions retains exclusive proprietary ownership of all software code, database schemas, user workflows, video productions, audio scripts, and template compilations.

7.2 Limited Operational License: The Client is granted a revocable, non-exclusive, non-transferable license to utilize generated PDF registers, attendance logs, and risk assessments solely for internal operations and statutory audit verification.

7.3 Prohibited Actions: Downloading, scraping, screen-recording, ripping, decompiling, or white-labeling video modules or software endpoints is strictly prohibited and constitutes an actionable copyright infringement under the Copyright Act 98 of 1978.

8. PROPRIETARY AGGREGATED DATA LICENSE & COMMERCIALIZATION

8.1 Grant of De-Identified Data License: The Client expressly grants Simple Solutions an irrevocable, perpetual, royalty-free, worldwide, transferable license to extract, compile, de-identify, and aggregate all operational metadata, module completion volumes, risk assessment intervals, and compliance telemetry.

8.2 Commercial Exploitation: Simple Solutions retains the exclusive right to commercialize, publish, and license such De-Identified Data in the form of supply-chain indices, underwriting risk benchmarks, and regional agricultural scorecards to third-party agri-insurers, underwriters, export bodies, and research institutions.

8.3 Anonymization Warranty: Simple Solutions warrants that all commercialized data feeds shall be strictly de-identified in terms of Section 1 of POPIA, utilizing k-anonymity cohort suppression (suppressing all reporting segments under five units) such that no individual worker, farm entity, or commercial property can be identified or reverse-engineered.

9. CORPORATE PARTNER REPORTING BOUNDARIES

9.1 High-Level Manifest Visibility: Where a Client's account is subsidized or monitored by a Corporate Partner via a Grower Code, the Corporate Partner's administrative portal is strictly restricted to high-level compliance manifests (e.g., active status, induction counts over 90 days, overdue BRA flags, dark supplier status).

9.2 Immutable Worker Privacy Wall: Under no circumstances shall individual employee personal records, ID numbers, individual signatures, or internal personnel registers be exposed or queryable by Corporate Partners.

10. GOVERNING LAW AND DISPUTE RESOLUTION

10.1 Jurisdiction: This Agreement is governed by the laws of the Republic of South Africa.

10.2 Court Consent: The parties consent to the non-exclusive jurisdiction of the High Court of South Africa (KwaZulu-Natal Division, Pietermaritzburg / Durban, or Western Cape Division, Cape Town).